

**IN THE COUNTY COURT OF THE SIXTH JUDICIAL CIRCUIT,
IN AND FOR PASCO COUNTY, FLORIDA**

SWEET LIVING, INC.,

Plaintiff,

vs.

CASE NO.: 2026-CC-001256

BRANDI RODGERS,

Defendant.

**DEFENDANT'S EMERGENCY MOTION TO STAY WRIT OF POSSESSION
PENDING APPEAL PURSUANT TO FLA. R. APP. P. 9.310**

COMES NOW Defendant, BRANDI RODGERS, appearing pro se, and pursuant to Florida Rule of Appellate Procedure 9.310 and Florida Rule of Civil Procedure 1.540, respectfully moves this Court for an Order Staying the Writ of Possession pending resolution of Defendant's appeal of the Final Judgment for Possession entered June 18, 2026 (DIN 44), and in support states:

I. INTRODUCTION AND PROCEDURAL POSTURE

1. On June 18, 2026, this Court entered a Final Judgment for Possession in favor of Plaintiff, Sweet Living, Inc. (DIN 44). The judgment directs issuance of a Writ of Possession ten (10) days after signing, meaning the Writ is scheduled to issue on or about June 28, 2026.
2. Defendant is simultaneously filing a Notice of Appeal of the June 18, 2026 Final Judgment to the Sixth Judicial Circuit Court.
3. Defendant requests that this Court stay the Writ of Possession pending resolution of the appeal. In the alternative, Defendant requests that the Circuit Court issue the stay pursuant to Fla. R. App. P. 9.310(b)(2).

II. STANDARD FOR STAY PENDING APPEAL

4. Under Florida Rule of Appellate Procedure 9.310(a), a trial court may stay the enforcement of any order pending appeal upon such conditions as the court deems proper. The primary factors are: (1) the likelihood of success on the merits of the appeal; (2) whether the movant will suffer irreparable harm absent a stay; (3) whether the stay will cause substantial harm to the opposing party; and (4) the public interest.

III. THE APPEAL RAISES SUBSTANTIAL MERITORIOUS ISSUES

5. This appeal raises multiple substantial legal issues, each of which independently warrants reversal of the Final Judgment:

- a. NO EVIDENTIARY HEARING ON EXISTENCE OF TENANCY: Defendant's Verified Motion to Determine Rent and Request for Evidentiary Hearing on the Existence of a Tenancy (DIN 26) specifically requested an evidentiary hearing on the threshold question of whether any landlord-tenant relationship exists, citing *Frey v. Livecchi*, 852 So. 2d 896 (Fla. 4th DCA 2003) and *Grimm v. Huckabee*, 891 So. 2d 608 (Fla. 1st DCA 2005). The Court entered judgment without conducting this required hearing. This is reversible error.
- b. DEFECTIVE SERVICE OF PROCESS: Defendant's Motion to Quash Service of Process (DIN 27), filed May 21, 2026, demonstrated that the purported substitute service on May 14, 2026 failed to comply with Fla. Stat. § 48.031(1)(a) in at least three independent respects: (i) the return of service failed to establish that the substitute recipient resided at Defendant's address; (ii) the papers were never placed in the recipient's hands — the process server's own return states papers were left while a closed storm door separated the server from the recipient; and (iii) the statutory 'informing' requirement was not satisfied through a closed door. Service that fails § 48.031(1)(a) confers no personal jurisdiction. Any judgment entered without valid service is void, not merely voidable.
- c. ABANDONMENT FINDING WAS ERROR: The June 18, 2026 judgment declared all of Defendant's pending motions 'abandoned' (DIN 44, Finding C) because Defendant accepted a recess offered by the Court itself. A litigant who accepts a court-offered break has not abandoned her motions. Moreover, a pending jurisdictional challenge under Fla. R. Civ. P. 1.140(b)(5) cannot be extinguished by a recess; it must be ruled upon.
- d. PLAINTIFF'S OWN DOCUMENTS DISPROVE TENANCY: The Plaintiff's own Notice of Denial of Tenancy, signed December 31, 2025, states in writing: 'We remind you that the State of Florida grants a purchaser of a mobile home the right to cancel or rescind their purchase contract if park approval is denied.' Plaintiff cannot simultaneously acknowledge Defendant's statutory right to rescind the purchase and then sue her as a non-paying tenant. Defendant exercised this rescission right by certified mail demand signed by the seller in January 2026.
- e. PREDICATE NOTICE IS VOID: The 7-Day Notice of January 5, 2026 falsely states that Defendant 'is currently residing' at 3929 Argyle St., Zephyrhills — a property Defendant never entered, never possessed, and was locked out of by a lock-blocker installed by Plaintiff's own property manager. An eviction proceeding based on a false predicate notice is defective from inception.
- f. GREEN TREE ACCEPTANCE WAS MISAPPLIED: The Court relied on *Green Tree Acceptance, Inc. v. Zimmerman*, 611 So. 2d 608 (Fla. 2d DCA 1993) to find Defendant owns the mobile home. Green Tree addresses whether a lien survives transfer of title — it does not address the existence of a landlord-tenant relationship under Chapter 723. The absence of a DMV certificate of title in Defendant's name

(Fla. Stat. § 319.22(2)) means no marketable title and, more importantly, no tenancy arises solely from possession of a bill of sale.

g. JURY TRIAL DEMAND WAS IGNORED: Defendant filed a Demand for Jury Trial (DIN 29, May 21, 2026) and earlier demands in the case. The Court entered final judgment without addressing or denying this demand.

h. COURT'S OWN MARCH 24 ORDER REQUIRED EVIDENCE REVIEW THAT NEVER OCCURRED: At a zoom hearing on March 24, 2026, Judge Compton stated on the record that he had not yet seen the Certificate of Title. He specifically ordered all parties, including Defendant's eyewitness, to appear in person at a subsequent hearing for the purpose of reviewing evidence including the title. At the June 18, 2026 hearing, the Court refused to review Defendant's certified complete title history from the Florida DMV, despite having ordered that very review at the March 24 hearing. The Court created the conditions for a proper evidentiary hearing and then failed to conduct one. This is a direct contradiction of the Court's own prior order.

i. SWORN EYEWITNESS TESTIMONY IN THE RECORD WAS IGNORED: Pursuant to the Court's March 24 order requiring in-person appearance, Defendant's eyewitness appeared and was sworn in by the Court. This witness was present on December 6, 2025 when Defendant counted out and delivered \$17,000 in cash to seller Sally Potes for the mobile home. This sworn testimony is part of the court record and constitutes evidence the Court was required to consider. The June 18 Final Judgment makes no reference to this sworn testimony and does not explain why it was disregarded. Ignoring sworn eyewitness testimony without explanation is reversible error.

j. PLAINTIFF'S OWN 5-DAY NOTICE TO SALLY POTES DESTROYS TENANCY CLAIM: On or about February 5, 2026, Plaintiff Sweet Living, Inc. issued a 5-Day Notice for non-payment of rent addressed to SALLY POTES at 3929 Argyle St., Zephyrhills, FL 33542 — the identical property at issue — claiming Sally Potes owed \$1,166 in rent. Plaintiff simultaneously pursued eviction against Defendant for non-payment of rent at the same address. There can be only one tenant responsible for lot rent on a single lot. By issuing a rent demand to Sally Potes, Plaintiff legally acknowledged that Sally Potes — not Defendant — was the responsible party for lot rent. Plaintiff never filed suit against Sally Potes. This selective prosecution of Defendant while acknowledging Sally Potes as the actual responsible party demonstrates that no valid tenancy relationship existed between Plaintiff and Defendant.

k. RENT CLAIM FROM DECEMBER 1, 2025 IS FACTUALLY IMPOSSIBLE: Plaintiff's complaint alleges rent was owed beginning December 1, 2025. Defendant's bank records establish the \$17,000 purchase payment was made on December 6, 2025 — five days after the alleged rent start date. Defendant did not know this property existed on December 1, 2025. Furthermore, seller Sally Potes demonstrated to Defendant and her eyewitness at the time of sale that Sally had already paid December 2025 lot rent from Sally's own bank account. No rent was or could have been owed by Defendant for December 2025.

l. PATTERN OF 19 CASES DEMONSTRATES SYSTEMIC ABUSE: Plaintiff Sweet Living, Inc. has filed nineteen (19) eviction cases in Pasco County Court, all

before the same judge, all represented by the same attorney, Keith William Wynne, Esq. Defendant submitted documentation of seventeen of these cases to the Court in March 2026 (DIN 13). Two additional cases were filed after Defendant's case. This pattern of repeat litigation between the same plaintiff, attorney, and court, combined with the Court's statement from the bench that 'Desmond needs his money,' raises substantial questions of systematic bias that the appellate court is entitled to review.

m. **TITLE FRAUD RENDERS TRANSACTION VOID:** The Certificate of Title provided by seller Sally Potes bears two government-certified brands: 'REBUILT' and 'MAY HAVE PREVIOUSLY BEEN DECLARED A TOTAL LOSS VEHICLE DUE TO DAMAGE.' Sally Potes represented to Defendant that the home had suffered no damage. These brands, printed on the official State of Florida title by the Department of Highway Safety and Motor Vehicles, directly contradict that representation. Additionally, the title reflects a fraudulent sale price of \$2,000 when Defendant paid \$18,000, and a fraudulent date of January 2, 2026 when the transaction occurred December 6, 2025. Making a false statement in a title application violates Fla. Stat. § 319.33(1)(e). A transaction induced by fraud and documented by a fraudulent government instrument cannot form the basis of a valid tenancy.

IV. DEFENDANT WILL SUFFER IRREPARABLE HARM WITHOUT A STAY

6. Execution of the Writ of Possession will cause Defendant irreparable harm, including: (a) a permanent eviction record that will follow Defendant and prevent future housing; (b) entry of an attorney fee and lien judgment based on a void proceeding; (c) loss of all legal recourse to recover \$18,000 paid for the mobile home through fraud; and (d) the hardship falls upon a single mother of a special-needs adult son who has already been financially devastated by the fraudulent sale.

7. Monetary damages cannot adequately compensate Defendant for the harm caused by an illegal eviction record and the cascading consequences it produces for housing eligibility.

V. A STAY WILL NOT SUBSTANTIALLY HARM PLAINTIFF

8. The property at 3929 Argyle St., Zephyrhills, FL 33542 is and has been vacant since the date of purported sale. Defendant never moved in, never took possession, and was locked out. Plaintiff therefore suffers no actual harm from a stay — the home sits empty today and will continue to sit empty during the pendency of the appeal.

9. This Court itself recognized this by staying the prior writ on June 3, 2026 (DIN 39) when it found sufficient grounds to set a hearing. The same logic applies to staying the current writ.

VI. PRAYER FOR RELIEF

WHEREFORE, Defendant respectfully requests that this Court:

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VI. PRAYER FOR RELIEF

WHEREFORE, Defendant respectfully requests that this Court:

10. STAY the Writ of Possession directed to issue pursuant to the Final Judgment of June 18, 2026 (DIN 44), pending resolution of Defendant's appeal to the Sixth Judicial Circuit Court;
11. In the alternative, certify to the Circuit Court that a stay is appropriate and defer to the Circuit Court's authority under Fla. R. App. P. 9.310(b)(2);
12. GRANT such further relief as the Court deems just and proper.

VERIFICATION

Under penalty of perjury, I declare that I have read the foregoing Motion and that the facts stated herein are true and correct to the best of my knowledge and belief.



BRANDI RODGERS, Defendant pro se

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Seminole, FL 33776

Telephone: 727-621-6090

Email: Brandisreallife@gmail.com

Dated: June 24, 2026

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on the date set forth above, a true and correct copy of the foregoing was furnished by U.S. Mail and/or email to: Keith William Wynne, Esq., The Law Office of Keith Will Wynne, Esq., 1001 E. Baker Street, Suite 101, Plant City, Florida 33563; Email: Keith@KeithWillWynne.com; Pleadings@KeithWillWynne.com.



BRANDI RODGERS, Defendant pro se